

Court No. - 29

Case :- WRIT - C No. - 16764 of 2019

Petitioner :- Virendra Kumar Gulati

Respondent :- U.P. Power Corporation Limited Purvanchal
Vidyut Nagriya Vitran And Another

Counsel for Petitioner :- Rajneesh Kumar Srivastava

Counsel for Respondent :- Mahboob Ahmad

Hon'ble Pankaj Mithal,J.

Hon'ble Prakash Padia,J.

Petitioner has applied for grant of electric connection of 2 kilowatt on 24.04.2015 but despite inspection report, no further action has been taken on the said application.

Sri Mahboob Ahmad learned counsel appearing for Purvanchal Vidyut Vitran Nigam Ltd. is directed to seek instructions as to the impediment in the grant of electric connection or the time frame in which it will be sanctioned.

As prayed by him, put up on Tuesday i.e. **21.05.2019** as fresh.

Order Date :- 16.5.2019

Nirmal

Court No. - 29

Case :- WRIT - C No. - 16764 of 2019

Petitioner :- Virendra Kumar Gulati

Respondent :- U.P. Power Corporation Limited Purvanchal Vidyut Nagriya Vitran And Another

Counsel for Petitioner :- Rajneesh Kumar Srivastava

Counsel for Respondent :- Mahboob Ahmad

Hon'ble Pankaj Mithal,J.

Hon'ble Prakash Padia,J.

Heard learned counsel for the petitioner and Sri Mahboob Ahmad, learned counsel for Purvanchal Vidyut Vitran Nigam Limited.

The petitioner alleges that he had applied for sanction of a domestic electricity connection of two kilowatts for his house No. 1172/460, Meerapur Allahabad on 24.5.2015 but till date it has not been sanctioned with the result he is suffering immense difficulty and hardship.

Sri Mahboob Ahmad, learned counsel was granted time to seek instructions. On instructions, he informs that a survey was conducted as to why the electricity connection was not sanctioned to him. The survey reveals that the said house already had an electricity connection PU-129373 in the name of Ashok Kumar Gulati, the brother of the petitioner. In respect of the said connection, a sum of Rs.23,890/- is due and payable. It is, therefore, contended that until and unless the said dues are cleared, the petitioner would not be entitled to any new connection.

The procedure for grant of electric connection is provided in Chapter 4 of the U.P. Electricity Supply Code, 2005. Clause 4.1 of the Code provides for the obligations on part of the licensee to supply electricity. It inter-alia provides

that if there are arrears of electricity dues on a premises, a new connection shall not be released to a new applicant or even to the old consumer.

Clause 4.3 of the Code provides for the general conditions for sanction of new connection. It provides that application forms for new connection shall be available free of cost to all applicants at all offices of the licensee i.e. the electric supplier and the same shall be received by the designated authority i.e. the executive engineer. It inter-alia provides that both the seller and purchaser of the property shall be either/or, and jointly liable to pay the outstanding electricity dues and to furnish No Dues Certificate for obtaining an electric connection in respect of the property concern. In case of tenanted accommodation where the landlord had consented for the connection it shall be responsibility of the owner to ensure that the tenant clears all dues of electricity before he vacates the premises and the application for new connection shall be processed on clearing of the dues. It further lays down that where the property has been legally sub-divided the outstanding electricity dues will be divided in pro-rata basis and the new connection shall be given only after the outstanding dues are satisfied.

Clause 4.4 of the Code provides that the application for new connection shall accompany (i) proof of ownership of the premises; (ii) proof of occupancy such as rent receipts etc.; (iii) identity proof; (iv) and owners' consent; etc.

In the case in hand, we find that the property initially belonged to the mother of the petitioner Kesarbai and the

petitioner after her death claims to be the exclusive owner but it does not appear to be correct for the simple reason that the petitioner is having a brother namely Ashok Kumar Gulati in whose name there is a valid electricity connection in the said premises. The petitioner has nowhere pleaded that the petitioner is living separately or the property has been sub-divided so as to separate his portion from his brother.

In view of the aforesaid facts and circumstances, until and unless, all previous dues in respect of any electricity connection installed in the premises are cleared and there is a consent or no objection by the other co-owner, if any, or alternatively an indemnity form, the petitioner would not be entitle for any fresh electricity connection.

Accordingly we are of the opinion that no mandamus for sanctioning any electricity connection to the petitioner under the facts and circumstances of the case is liable to be issued. The petition is dismissed with liberty to the petitioner to pursue the Executive Engineer and complete formalities for a separate electricity connection in the said premises as provided under the provisions of Supply Code, 2005.

The writ petition is dismissed.

Order Date :- 21.5.2019
saqlain